

VCU319543 Gill, Jai vs. Deluxe Foods II, Inc. et al

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-18

Motion: Plaintiff's Motion for Attorneys' Fees

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Re: Gill, Jai vs. Deluxe Foods II, Inc. et al

Case No.: VCU319543

Date: August 18, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motion for Attorneys' Fees

Tentative Ruling: To grant the motion in part and award \$21,784 in fees and \$12,410 in interest; To deny the motion in part as to the costs.

Facts

In this matter, Plaintiff sued Defendant Deluxe Foods II, Inc. for breach of written contract, breach of oral contract, goods sold and delivered, account stated, open account, and foreclosure of mechanic's lien bond, seeking \$92,500 in damages.

Additionally, Plaintiff sued Defendants Emer Ahmed Saleh and Shogh Saleh for breach of oral contract, goods sold and delivered, account stated, open account, and foreclosure of mechanic's lien bond, seeking \$92,500 in damages.

Further, Defendant Deluxe Foods II, Inc. cross-complained against Plaintiff for breach of contract.

The case proceeded to bench trial on May 27 and 28, 2026. After trial, the Court entered judgment on June 18, 2026 as follows:

"1. Plaintiff JAI GILL is awarded the sum of Eighty-Seven Thousand, Five Hundred Dollars (\$87,500.00) from Defendant DELUXE FOODS II, INC. on its first cause of action for breach of written contract

2. Plaintiff JAI GILL is not entitled to an award on its second, third, fourth, fifth or sixth causes of actions.

3. Plaintiff JAI GILL is not entitled to an award on any of its causes of actions against Defendant EMER AHMED SALEH or Defendant SHOGY SALEH.

4. Cross-Complainant DELUXE FOOD II, INC. is not entitled to an award on its first cause of action for breach of contract against Cross-Defendant JAI GILL.

5. Plaintiff JAI GILL shall recover pre-judgment interest at a rate of ten percent per year on the awarded sum of Eighty-Seven Thousand, Five Hundred Dollars (\$87,500.00) commencing January 16, 2025 through date of judgment."

Further, that "6. Plaintiff JAI GILL shall recover attorney's fees, to be determined in a post judgment motion, in the amount of \$ ____" and "7. Plaintiff JAI GILL shall recover costs, to be determined in a post-judgment memorandum of costs, in the amount of \$ ____"

On July 7, 2026, Plaintiff filed this motion for attorneys' fees in the amount of \$28,485, consisting of 64.54 hours at the rate of \$450 per hour and prejudgment interest in the amount of \$12,410.00 "plus costs in the amount of \$4,027.87." The declaration of Plaintiff's counsel states that Memorandum of Costs was filed "June 22, 2026."

Plaintiff notes the contract at issue contains Paragraph 12 which states "In any action or proceeding between the parties hereto concerning this Agreement, or the rights and duties of any party in relation thereto, the party prevailing shall be entitled, in addition to such other relief as may be granted, to recover from the losing party its reasonable attorney's fees and costs in such action or proceeding, or an other separate action brought for that purpose."

In opposition, Defendants argue that the request for costs is procedurally defective, as no memorandum of costs was filed.

Further, that prejudgment interest should be denied because the amount at issue was not certain until trial.

Finally, that attorneys' fees should be denied because Gill did not prevail on all claims and for the amount pled in the complaint. In other words, Defendants seek to deny attorneys' fees based on mixed results.

Authority and Analysis

Attorneys' Fees

Plaintiff seeks fees under the attorneys' fees provision in Paragraph 12 of the contract between Plaintiff and Defendants.

Where there is an agreement for attorney's fees, Civil Code 1717 provides:

"(a) In an action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. ...Reasonable attorney's fees shall be fixed by the court and shall be an element of the costs of suit."

Additionally, “The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract. The court may also determine that there is no party prevailing on the contract for purposes of this section...” (Civil Code § 1717(b)(1).)

As to Defendants’ “mixed results” claims, the Court notes *Silver Creek, LLC v. BlackRock Realty Advisors, Inc.* (2009) 173 Cal.App.4th 1533, 1539 provides:

“When determining the prevailing party under section 1717, the trial court “is to compare the relief awarded on the contract claim or claims with the parties’ demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources.” ([*Hsu v. Abbata* (1995) 9 Cal.4th 863,] 876.) Additionally, “in determining litigation success, courts should respect substance rather than form, and to this extent should be guided by ‘equitable considerations.’ For example, a party who is denied direct relief on a claim may nonetheless be found to be a prevailing party if it is clear that the party has otherwise achieved its main litigation objective. [Citations.]” (Id. at p. 877, italics omitted.) A trial court has wide discretion in determining which party is the prevailing party under section 1717, and we will not disturb the trial court’s determination absent “a manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (*Yield Dynamics, Inc. v. TEA Systems Corp.* (2007) 154 Cal.App.4th 547, 577)”

Here, Plaintiff sued for \$92,500 on the breach of contract claim as against Defendant Deluxe Foods II and recovered via the judgment \$87,500. While Plaintiff did not recover on the other causes of action, the main litigation objective was payment under the contract for work completed on the project in this matter. Plaintiff achieved the main litigation objective: to be paid for the work following the notice of completion. In addition, the Judgment itself indicates Plaintiff is the prevailing party and Plaintiff properly seeks its fees here. Plaintiff is the prevailing party.

Calculation of Attorneys’ Fees

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

“Under that [lodestar]method, the court ‘tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.’” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.)” (*Marshall v. Webster* (2020) 54 Cal.App.5th 275, 285.)

Reasonable Local Rate

“The lodestar calculation begins with a determination of the ‘reasonable hourly rate,’ i.e., the rate ‘prevailing in the community for similar work.’” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)” (*Marshall, supra*, 54 Cal.App.5th at 285.) “The general rule is ‘[t]he relevant “community” is that where the court is located.’” (*Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71.)” (*Marshall, supra*, 54 Cal.App.5th at 285.) “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (Id.) Additionally, the determination of the value of the legal services is committed to the discretion of the trial court without necessity of expert testimony. (*Cordero-Sacks, v. Housing Authority* (2011) 200 Cal App 4th 1267, 1286.)

Here, the hourly rate is \$450 per hour. There is no evidence provided that the \$450 per hour attorney rate is the prevailing rate in Tulare County, where this Court resides. This Court, based upon its experience as to the prevailing rates in Tulare

County, sets the hourly rate at \$350 per hour.

Number of Hours Reasonably Expended and Apportionment

Although detailed time records are not required, courts have expressed a preference for contemporaneous billing and an explanation of work. (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.) “Of course, the attorney’s testimony must be based on the attorney’s personal knowledge of the time spent and fees incurred. (Evid.Code, § 702, subd. (a) [‘the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter’].) Still, precise calculations are not required; fair approximations based on personal knowledge will suffice.” (*Mardirossian & Associates, Inc. v. Ersoff* (2007) 153 Cal.App.4th 257, 269.)

The starting point for the determination as to hours is the attorney’s submitted time records. (*Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal. App. 4th 359, 395-397—verified time records entitled to credence absent clear indication they are erroneous.) “Plainly, it is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (*Morris*, supra, 41 Cal.App.5th at 39.)

Where a party is challenging the reasonableness of attorney’s fees as excessive that party must attack itemized billing with evidence that the fees claimed were not appropriate or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 563-64.) A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 101.) Attorney billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

Here, Defendants fail to specifically challenge the itemized billing records. The Court has reviewed the records and finds them generally reasonable and well-founded. The court will reduce the amounts requested for the Motion to Compel billed on November 4-5, 2025, by 1.3 hours as it appears two attorneys were billing for substantially similar work. The Court will also reduce the time awarded for the Motion to Compel drafted in March 2026 by one hour for the same reason.

Therefore, the Court awards \$21,784 in attorneys’ fees, calculated by multiplying \$350 by 62.24 hours.

Prejudgment Interest

While Defendants argue prejudgment interest should be denied, the Judgment in this matter expressly states Plaintiff is entitled to recover prejudgment interest from Defendant Deluxe II.

Therefore, the Court awards the prejudgment interest as calculated by Plaintiff in the amount of \$12,410.

Costs

The Court’s file reflects no filed memorandum of costs.

The Judgment expressly required costs to be determined via a “post-judgment memorandum of costs.”

Because no memorandum appears filed at this time, the Court denies the request for costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.